

PROFESSIONAL SERVICES AND SOFTWARE LICENSE AGREEMENT

This Professional Services and Software License Agreement ("Agreement") is made as of March 15, 2024 ("Effective Date") between:

Vendor: DataSync Solutions Ltd., a Texas corporation located at 1200 Tech Parkway, Austin, TX 78701 ("Vendor"); and

Customer: Meridian Healthcare Group Inc., an Illinois corporation located at 900 Medical Center Drive, Chicago, IL 60601 ("Customer").

The Parties agree as follows:

ARTICLE 1 - TERM

1.1. Term

This Agreement shall terminate for cause if either party automatically renews in advance.

1.2. Payment Terms

Customer shall pay Vendor annually by up to thirty (30) days.

ARTICLE 2 - SERVICES

2.1. Service Scope

Vendor shall provide the services described in Schedule A.

2.2. Change Orders

Vendor may make changes to the services. If Customer requests a change, Vendor may add to the cost.

2.3. Governing Law

This Agreement shall be governed by the state or federal law of the State of Texas.

ARTICLE 3 - HIPAA BUSINESS ASSOCIATE AGREEMENT

3.1. Business Associate Designation

Vendor is designated as a Business Associate of Customer for the purpose of processing Protected Health Information (PHI).

3.2. Permitted Uses and Disclosures of PHI

Vendor may use PHI to provide services required by Customer. Vendor shall not require Customer to provide PHI beyond what is required by applicable law.

3.3. Safeguards for PHI

Vendor shall maintain appropriate safeguards to prevent unauthorized access, use, or disclosure of PHI in accordance with Sections 164.306 and 164.308 of the HIPAA Privacy Rule.

3.4. Breach Notification

In the event of a breach of PHI, Vendor shall notify Customer within 60 days of discovery of the breach.

3.5. Return or Destruction of PHI

Upon termination or expiration of this Agreement, Vendor shall return or destroy all PHI provided by Customer, unless otherwise directed by Customer.

3.6. Subcontractor Agreements

Vendor shall ensure that all subcontractors are bound by the same obligations and standards as Vendor.

ARTICLE 4 - GDPR DATA PROCESSING

4.1. Data Processing Agreement

To the extent Vendor processes Personal Data on behalf of Customer, this Agreement constitutes the Data Processing Agreement required by Article 28 of the GDPR. Vendor is the Data Processor.

4.2. Lawful Basis and Purpose Limitation

Vendor shall process Personal Data only for specific purposes and in accordance with the lawful basis of performance of a contract for maintenance. The processing is necessary for the operation of the system. Vendor shall not disclose Personal Data to third parties, including its employees and subcontractors, without the prior written consent of Customer. Vendor shall not use Personal Data for any other purpose.

4.3. Security Measures

Vendor shall implement appropriate technical and organizational measures to protect Personal Data against unauthorized access, use, or disclosure.

4.4. Data Breach Notification

Vendor shall notify Customer of any data breach not later than seventy-two (72) hours after the notification obligation is triggered, unless the nature of the breach is such that notification is not required. In the event of a breach, Vendor shall take all reasonable steps to contain the breach and prevent further damage.

4.5. Sub-processor Approval

Vendor shall obtain written approval from Customer for all sub-processors

4.6. Return or Deletion

Upon termination or expiration of this Agreement, Vendor shall return or delete all data required by applicable law

ARTICLE 5 - SECURITY STANDARDS

5.1. Access Controls

Vendor maintain strict access controls to all systems processed by Vendor

5.2. Incident Response

Vendor maintain an incident response process for incidents involving the processing of Customer data

5.3. Security Audit

Vendor undergo annual security audits by a third party, with findings subject to review by Customer

ARTICLE 6 - INTELLECTUAL PROPERTY AND DATA

6.1. Work Product Ownership

All work product created by Vendor for Customer under this Agreement shall be the intellectual property of Customer under the applicable law in the applicable jurisdiction, including internal business processes

6.2. Customer Data

Customer retain all rights in and to its data, including the right to use, modify, and delete its data, and to use its data to improve its products and services, and to identify and protect its data

ARTICLE 7 - LIABILITY

7.1. Limitation of Liability

Vendor's maximum aggregate liability shall not exceed the greater of: (a) five hundred thousand dollars (\$500,000); or (b) the cap applies regardless of the number of Customers

7.2. Consequential Damages Waiver

Neither Party shall be liable for consequential damages, including loss of profits, data, or business, arising out of or from this Agreement

7.3. Indemnification by Customer

Customer shall indemnify and hold Vendor harmless from and against all claims, damages, losses, and expenses, including reasonable attorneys' fees, arising out of or from the use of the Services; (b) Customer shall indemnify and hold Vendor harmless from and against all claims, damages, losses, and expenses, including reasonable attorneys' fees, arising out of or from the use of the data or instructions provided by Customer, including corresponding to the data or instructions

ARTICLE 8 - GENERAL

8.1. Entire Agreement

This Agreement

8.2. Amendments

Vendor may amend
use of Services

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the date first written.

DataSync Solutions Ltd.

By: _____

Name: Robert Martinez

Title: President

Date: March 15, 2024

Meridian Healthcare Group Inc.

By: _____

Name: Sarah Johnson

Title: VP of Operations

Date: March 15, 2024